

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF MOTION AND MOTION
FOR SANCTIONS**

(CCP § 128.7)

Dept.: 610
Date: June 24, 2026

**PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR SANCTIONS
UNDER CODE OF CIVIL PROCEDURE SECTION 128.7 (ANTI-SLAPP
REPLY DECLARATION MISCONDUCT)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented
(To be served on or before Tue, June 2, 2026 pursuant to CCP section 1005(b), 16 court days before
the June 24, 2026 hearing.)

I. NOTICE OF MOTION

TO ALL PARTIES AND TO THEIR COUNSEL OF RECORD:

1 PLEASE TAKE NOTICE that on **June 24, 2026, at 9:00 a.m.**, in **Department 302** of the above-
2 entitled Court, located at 400 McAllister Street, San Francisco, California, before the Honorable
3 Joseph M. Quinn, Plaintiff Dylan Franciscus Rosario (“Plaintiff”) will and hereby does move this
4 Court for an order imposing monetary and non-monetary sanctions under Code of Civil Procedure
5 section 128.7 against Defendant CSAA Insurance Exchange and against its counsel of record,
6 Porter Scott, A Professional Corporation, and the individual attorneys Mark G. Tapp, Tyler J.
7 O’Connell, Mason Schubert, and Sarah J. Blithe (collectively, “Defendant and Counsel”), jointly
8 and severally to the extent permitted by section 128.7(c)(1).

10 **II. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING**

11 **LINE**

12 By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
13 this Court continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department
14 302. Following the parties’ stipulation, the Court has further ordered that all then-pending Dept.
15 302 matters in this action be heard on a single, consolidated June 24, 2026 line. This Notice of
16 Motion is filed in conformity with that consolidation and is served at least 16 court days before the
17 hearing pursuant to CCP section 1005(b).

19 **III. RELIEF SOUGHT**

20 The motion seeks the following relief under CCP section 128.7(c) and (d):

- 21 1. An order finding that Defendant and Counsel, by presenting and continuing to advocate the
22 filings identified in Section IV below, violated one or more subdivisions of CCP section
23 128.7(b), specifically:
 - 24 (a) section 128.7(b)(1), presentation for an improper purpose, including to harass, cause
25 unnecessary delay, or needlessly increase the cost of litigation against a self-represented
26 plaintiff;
 - 27 (b) section 128.7(b)(2), legal contentions not warranted by existing law or by a non-frivolous

argument for the extension, modification, or reversal of existing law, including but not limited to representations made while the directly adverse controlling authority of JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 was concealed from the tribunal; and

(c) section 128.7(b)(3), factual contentions lacking evidentiary support, including the new fee theory and the redacted-summary exhibit first introduced in the May 6, 2026 Reply Declaration of Tyler J. O'Connell.

2. An order **striking** paragraph 6 and Exhibit A of the May 6, 2026 Reply Declaration of Tyler J. O'Connell, and any later-filed declaration purporting to incorporate the same matter, including the duplicative-title O'Connell declaration filed on or about May 8, 2026.
3. **Monetary sanctions** in an amount sufficient to deter repetition, payable to the Court under section 128.7(d)(1), or in the alternative payable to Plaintiff under section 128.7(d)(2) to reimburse the reasonable expenses Plaintiff incurred as a direct result of the violations, including but not limited to the additional briefing required to file Plaintiff's Motion to Strike the May 6 Reply Declaration (Transaction ID 79429443; filed May 8, 2026) and the present sanctions motion.
4. **Non-monetary directives**, including a directive that Defendant and Counsel, in any later-filed brief or oral argument in this action, **affirmatively acknowledge** the controlling authorities they previously failed to disclose, including JKC3H8 v. Colton (2013) 221 Cal.App.4th 468; Park v. Board of Trustees (2017) 2 Cal.5th 1057; Baral v. Schnitt (2016) 1 Cal.5th 376; Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871; and Flatley v. Mauro (2006) 39 Cal.4th 299.
5. A **referral**, as a non-monetary sanction within the Court's discretion, of the responsible attorneys to the State Bar of California under California Business and Professions Code section 6086.7 and California Rules of Professional Conduct, rules 3.3(a)(1), 3.3(a)(2), and 3.4(b), for evaluation of professional-conduct violations arising from the conduct described in the accompanying memorandum.
6. **Joint and several responsibility** of Porter Scott, A Professional Corporation, with the individual signatory attorneys, pursuant to CCP section 128.7(c)(1).

7. Such further relief, monetary or non-monetary, as the Court deems just under CCP section 128.7(d) and the Court's inherent authority.

IV. GROUNDS FOR THE MOTION

The motion is made on the grounds that the following filings of Defendant and Counsel, taken individually and cumulatively, violate CCP section 128.7(b):

- (A) The **Memorandum of Points and Authorities in Support of Special Motion to Strike pursuant to CCP section 425.16**, filed April 9, 2026 (the "Anti-SLAPP MPA"), insofar as it advances "cannot prevail" certifications and "frivolous" / "meritless" / "unsupportable" labels against the operative pleading without disclosing Baral v. Schnitt, Park v. Board of Trustees, Wilson v. Cable News Network, Inc., and Flatley v. Mauro;
 - (B) The **Opposition to Plaintiff's Motion for Leave to File a Second Amended Complaint**, filed April 23, 2026 (the "MFL-SAC Opposition"), insofar as its Introduction page represents that "Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion," made while JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 sat undisclosed;
 - (C) The **Reply Declaration of Tyler J. O'Connell in Support of Special Motion to Strike**, filed on or about May 6, 2026 (the "May 6 O'Connell Reply Declaration"), including paragraph 6 and Exhibit A, which introduce on reply a new, quantified attorney-fee theory and a redacted-summary exhibit lacking foundation under Evidence Code sections 702, 1271, and 1521; and
 - (D) The duplicative-title **O'Connell Reply Declaration** filed on or about May 8, 2026 (the "May 8 Second O'Connell Declaration"), insofar as it repeats or extends the matter struck-at by Plaintiff's Motion to Strike the May 6 Reply Declaration (Transaction ID 79429443, filed May 8, 2026).
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V. SAFE-HARBOR COMPLIANCE

This motion was preceded by service of plaintiff's CCP section 128.7(c)(1) safe-harbor notice on Defendant and Counsel during the window of **May 5 to May 8, 2026**. The 21-day safe harbor ex-

1 pired during the window of **May 26 to May 29, 2026** without withdrawal or appropriate correction
2 of the filings identified in Section IV. (See accompanying Memorandum, Section III; Declaration
3 of Dylan Franciscus Rosario, paragraphs 5 to 11; Request for Judicial Notice, Exhibits A through
4 D.)
5

6 **VI. BASIS FOR THE MOTION**

7 The motion is based on this Notice; the accompanying Memorandum of Points and Authorities;
8 the Declaration of Dylan Franciscus Rosario; the Request for Judicial Notice and its exhibits; the
9 records and files of this action (including but not limited to the Anti-SLAPP MPA filed April 9,
10 2026; the MFL-SAC Opposition filed April 23, 2026; the May 6, 2026 O'Connell Reply Decla-
11 ration; the May 8, 2026 Second O'Connell Declaration; Plaintiff's Motion to Strike May 6 Reply
12 Declaration of Tyler J. O'Connell and Exhibit A, filed May 8, 2026, Transaction ID 79429443; the
13 May 13, 2026 minute order continuing all matters to June 24, 2026; and the order of consolidation
14 entered following the parties' stipulation); the operative Bench Brief (Tab 26) and Rule 3.3(a)(2)
15 Notice of Directly Adverse Controlling Authority (JKC3H8 packet, Tabs 33 / 33A); and such oral
16 and documentary evidence as may be presented at the hearing.
17

18 **VII. PRAYER**

19 WHEREFORE, Plaintiff respectfully prays that the Court:

- 20 1. **GRANT** the motion in whole;
 - 21 2. **ENTER** the relief identified in Section III, including monetary sanctions, an order striking
22 the offending matter, a directive of affirmative acknowledgment of undisclosed controlling
23 authority, and State Bar referral; and
 - 24 3. **SIGN** the **Proposed Order** filed concurrently with this Notice of Motion.
25
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1 **VIII. SERVICE**

2 This Notice of Motion and the accompanying papers are served on Defendant's counsel of record,
3 Mark G. Tapp, Tyler J. O'Connell, Mason Schubert, and Sarah J. Blithe (Porter Scott, A Profes-
4 sional Corporation), by electronic mail pursuant to CCP section 1010.6 and Cal. Rules of Court,
5 rule 1.21, with a Proof of Service (POS-050) filed contemporaneously.

6 _____
7 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path